

Federal Parliament Secretariat Act, 2007

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 30

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Federal Parliament Secretariat Act, 2064".
- (2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Constitution" means the Constitution of Nepal amended by the Act to Amend Some Nepal Acts, 2072..
 - (b) "Speaker" means the Speaker of the Federal Parliament.
 - (c) "Deputy Speaker" means the Deputy Speaker of the Federal Parliament.
 - (d) amended by the Act to Amend Some Nepal Acts, 2072."Leader of the Opposition" means the Leader of the Opposition in the Federal Parliament pursuant to Sub-section (1) of Article 296 of the Constitution.
 - (e) "Member" means a member of the Federal Parliament.
 - (f) "Secretariat" means the Federal Parliament Secretariat established pursuant to Section 3.
 - (g) "Committee" means the Secretariat Operation and Management Committee formed pursuant to Section 6.
 - (h) "Office Bearer" means the Speaker, Deputy Speaker, Leader of the Opposition, Chairperson of committees of the Federal Parliament, leader of the parliamentary party, deputy leader, chief whip, principal whip, whip, secretary and whip of political parties represented in the Federal Parliament, and the Secretary General and Secretary of the Federal Parliament.
 - (i) "Federal Parliament Service" means the Nepal Federal Parliament Service formed pursuant to Section 14.
 - (j) "Secretary General" means the Secretary General of the Federal Parliament.
 - (k) "Secretary" means the Secretary of the Federal Parliament.
 - (l) "Secretariat Secretary" means the Secretary of the Secretariat.
 - (m) "Promotion Committee" means the Promotion Committee constituted pursuant to Section 27.
 - (n) "Employee" means a person appointed to a post of the Federal Parliament Service.
 - (o) "Orderly" means a person appointed to the post of orderly.
 - (p) "Permanent Post" means a post of the Federal Parliament Service which is pensionable and for which no term is fixed.
 - (q) "Family" means the husband, wife, son, unmarried daughter, adopted son, unmarried adopted daughter, father, mother or stepmother living with the employee and whom the employee himself/herself has to support; and in the case of a male or unmarried female employee, the term also includes his/her grandfather and

grandmother, and in the case of a married female employee, also includes her father-in-law and mother-in-law.

(r) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
Chapter-2

Establishment of Secretariat and Other Arrangements

3. Establishment of Secretariat: (1) A Federal Parliament Secretariat is hereby established for the smooth conduct of the business of the Federal Parliament and for the operation and management of the Federal Parliament Service, among others.

(2) The Secretariat shall consist of the Secretary General, Secretaries, and the required number of employees and orderlies. 4.

To be an Autonomous and Self-Governing Body: The Secretariat shall be an autonomous and self-governing body. 5. Functions, Duties and Powers of the Secretariat: (1) Except as provided in the prevailing law, the functions, duties and powers of the Secretariat shall be as follows:- (a) To provide necessary services and facilities to the Federal Parliament, committees of the Federal Parliament, office bearers and members, (b) To make administrative, financial and physical management related activities systematic and effective for the smooth conduct of the business of the Federal Parliament, (c) To make the information system of the Federal Parliament effective and to arrange security within the Federal Parliament premises, (d) To provide necessary services and facilities to the offices of parties in the Federal Parliament. (2) Other functions, duties and powers of the Secretariat shall be as prescribed. 6. Formation of Committee: (1) There shall be a Secretariat Operation and Management Committee for determining necessary policies and for overseeing, controlling and supervising the smooth operation and management of the Federal Parliament and the Secretariat, among others. (2) The Committee pursuant to Sub-section (1) shall be formed as follows:- (a) Speaker - Chairperson (b) Chairperson of the National Assembly - Member (c) Deputy Speaker - Member (d) Vice-Chairperson of the National Assembly - Member (e) Secretary General - Member (f) Secretary of the House of Representatives - Member (g) Secretary of the National Assembly - Member (h) Secretariat Secretary (Parliamentary Studies and Research) - Member (i) Secretariat Secretary (Administration) - Member Secretary 7. Functions, Duties and Powers of the Committee: (1) The functions, duties and powers of the Committee shall be as follows:- (a) To perform functions relating to the operation and management of the Secretariat, (b) To determine the annual budget of the Federal Parliament and the Secretariat, (c) To determine the staffing of employees to be in the Federal Service, (d) To perform functions relating to the career development and determination of facilities of the employees of the Secretariat, (e) To formulate policy relating to physical construction and improvement of the Federal Parliament, (f) To establish and cause to be established coordination and harmony among the committees of the Federal Parliament, (g) To perform necessary functions to enhance the efficiency and capability of members, (h) To prepare an annual schedule of work of the Federal Parliament and committees of the Federal Parliament in coordination with the Government of Nepal, and to formulate and cause to be implemented short-term and long-term plans of the Federal Parliament Secretariat. (2) Other functions, duties and powers of the Committee shall be as prescribed. (3) The procedure relating to the meeting of the Committee shall be as determined by the Committee itself. 8.

Functions, Duties and Powers of the Speaker: In addition to those mentioned in the prevailing law, the functions, duties and powers of the Speaker shall be as follows:- (a) To perform functions relating to the internal and external representation of the Federal Parliament, (b) To approve the domestic and foreign travel

and travel expenses of office bearers, members and the Secretary General of the Federal Parliament, (c) To establish contact and relations with federal, international and regional parliamentary associations and friendship groups of friendly nations, (d) To give necessary directives to the Government of Nepal and other concerned bodies regarding the implementation of decisions of the Committee. 9. Functions, Duties and Powers of the Secretary General: (1) In addition to those mentioned in the prevailing law, the functions, duties and powers of the Secretary General shall be as follows:- (a) To act as the administrative chief of the Secretariat, (b) To perform functions relating to the appointment, retirement and punishment of employees of the Federal Parliament Service pursuant to this Act, (c) To perform functions relating to the operation and management of the Secretariat in accordance with the directives of the Committee, (d) To prepare and submit to the Committee the annual budget, programs and plans of the Federal Parliament and the Secretariat, (e) To perform and cause to be performed functions relating to the expenditure of the budget amount allocated for the Federal Parliament and the Secretariat and financial administration, (f) To perform and cause to be performed functions relating to physical construction and improvement of the Secretariat, (g) To establish relations and exchange cooperation with friendly nations, foreign diplomatic missions and international agencies, and national and international associations and institutions, (h) To maintain coordination between the Secretariat and other bodies, (i) To look after, maintain and upkeep the movable and immovable property of the Federal Parliament and the Secretariat, (j) To make necessary arrangements for the smooth conduct of the business of the Federal Parliament and committees of the Federal Parliament. (2) Other functions, duties and powers of the Secretary General shall be as prescribed. 10.

Functions, Duties and Powers of the Secretary: (1) Except as mentioned in the prevailing law, the functions, duties and powers of the Secretary shall be as follows:- (a) To act as the chief of the committees and branch employees of the Federal Parliament, (b) To prepare and submit to the Secretary General the annual budget required for the committees of the Federal Parliament, (c) To oversee and arrange functions related to the Federal Parliament and committees, (d) To perform other functions as directed by the Speaker, Deputy Speaker and Secretary General. (2) Other functions, duties and powers of the Secretary of the Federal Parliament shall be as prescribed. 11. Functions, Duties and Powers of the Secretariat Secretary: (1) The functions, duties and powers of the Secretariat Secretary shall be as follows:- (a) To assist the Secretary General in administrative functions, (b) To prepare and submit to the Secretary General the annual budget, programs and plans of the Secretariat, (c) To look after, maintain and upkeep the movable and immovable property of the Secretariat, (d) To supervise, monitor and evaluate the work of employees under the branches under his/her purview, (e) To perform other functions as directed by the Secretary General. (2) Other functions, duties and powers of the Secretariat Secretary shall be as prescribed. Chapter-3 Provisions Relating to Budget and Fund 12. Budget Determination: (1) The Committee shall determine the annual budget for the Federal Parliament Secretariat in consultation with the Finance Minister. (2) The budget determined pursuant to Sub-section (1) shall be included by the Government of Nepal in the Appropriation Bill. (3) The procedure relating to financial administration of the Federal Parliament Secretariat shall be as prescribed. 13. Federal Parliament Development Fund: (1) There shall be a separate fund called the Federal Parliament Development Fund for the physical construction, improvement, development of information technology, upgrading of library, and capacity enhancement of office bearers, members and employees of the Federal Parliament, and the Fund shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received as grants and assistance from foreign governments, foreign diplomatic missions, national and international associations, institutions or bodies, (c) Amount received from other sources. (2) The Committee may receive grants and assistance from foreign governments, foreign diplomatic missions, national and international associations, institutions or bodies. Information of the grants

and assistance received in this manner shall be given to the Ministry of Finance. (3) Provisions relating to the operation of the Fund pursuant to Sub-section (1) shall be as prescribed. Chapter-4 Provisions Relating to Formation of Federal Parliament Service and Filling of Posts 14.

Formation of Federal Parliament Service: (1) A service named the Federal Parliament Service is hereby formed. (2) The Federal Parliament Service shall have the following classes:- Gazetted Non-Gazetted Special First First Second Second Third Third Fourth Fifth (3) If employees working in a classless post at the time of commencement of this Section wish to be included in a class, such employees shall be placed in the Non-Gazetted Fifth class as prescribed. (4) The classes pursuant to Sub-section (2) shall have posts of various levels as prescribed. 15. Job Description: (1) Based on the job description of the organization approved by the Committee, the Secretary General shall prepare and implement a job description for each post of the Service. (2) In the job description pursuant to Sub-section (1), the functions, duties, responsibilities, powers of the concerned post and the qualifications required for that post shall be clearly mentioned. (3) When posting an employee, the posting letter shall be accompanied by the employee's job description and indicators for evaluation according to that job description. (4) Other provisions relating to job description shall be as prescribed. 16. Groups and Sub-Groups: (1) The Federal Parliament Service shall have groups and sub-groups as prescribed. (2) The minimum qualifications required for posts of various classes in the groups and sub-groups of the Federal Parliament Service shall be as prescribed. 17. Filling of Posts of Federal Parliament Service: (1) The post of Gazetted Special class of the Federal Parliament Service shall be filled pursuant to Section 26, and the following posts shall be filled as follows:- Post By open competition By evaluation of work performance By promotion through internal competitive examination By adjustment from promotion through evaluation of performance and experience (a) Classless/ Non-Gazetted Fifth class - - - - (b) Non-Gazetted Fourth class - - - - (c) Non-Gazetted Third class - - - - (d) Non-Gazetted Second class 60% 20% 20% - (e) Non-Gazetted First class 60% 20% - 20% (f) Gazetted Third class 70% 10% 10% 10% (g) Gazetted Second class 10% 60% 20% 10% (h) Gazetted First class 10% 60% 20% 10% (2) Notwithstanding anything contained in Clause (c) of Sub-section (1), if no employee is serving in a Non-Gazetted Third class post, such post shall be automatically abolished.

The Secretariat shall send information of the abolition of such posts to the Civil Records Office. The work performed from such posts shall be performed through service contract with a person or institution by fixing minimum remuneration.

(5) For posts to be filled by internal competitive examination pursuant to Clause (d) of Sub-section (1), the post shall be filled by allowing competition from employees working in any post (including classless posts) of Non-Gazetted Third class and below who have completed the minimum educational qualification and minimum service period required for the Non-Gazetted Second class post.

(6) Notwithstanding anything contained in Sub-section (1), to make the Federal Parliament Service inclusive, forty-five percent of the posts to be filled by open competition shall be set aside, and considering that percentage as one hundred percent, the posts shall be filled by allowing separate competition only among the following candidates:-

(a) Women - thirty-three percent

(b) Indigenous/Janajati - twenty-seven percent

(c) Madhesi - twenty-two percent

(d) Dalit - nine percent

(e) Persons with disabilities - five percent

(f) Backward region - four percent

Explanation:-

(1) For the purpose of this Sub-section, "Backward region" means the districts of Achham, Kalikot, Jajarkot, Jumla, Dolpa, Bajhang, Bajura, Mugu and Humla.

(2) For the purpose of clauses (a), (b), (c) and (d) of this Sub-section, "Women", "Indigenous/Janajati", "Madhesi" and "Dalit" means women, indigenous/janajati, madhesi and dalit who are economically and socially backward.

(7) Notwithstanding anything contained elsewhere in this Section, the posts of the percentage determined pursuant to Clause (e) of Sub-section (6) shall be filled by competitive examination allowing competition only among persons with disabilities as prescribed for a specific type of work.

(8) While determining the percentage pursuant to Sub-section (6), if the fraction is less than one percent, such fraction shall roll over to the group immediately following the group for which the fraction has arisen.

(9) If suitable candidates are not available in the advertisement for the year for which the posts set aside pursuant to Sub-section (6) are advertised, such posts shall be included in the advertisement of the following year, and if suitable candidates are not available even after advertising in that manner, such posts shall be included in the posts to be filled by open competition in that same year.

(10) The provision for filling posts by the percentage determined pursuant to Sub-section (6) shall be reviewed every ten years.

(11) If any dispute arises regarding the determination of the number of posts according to the percentage pursuant to Sub-section (6), the decision of the Public Service Commission shall be final.

(12) Posts to be filled by adjustment from promotion through evaluation of performance and experience pursuant to Sub-section (1) shall be adjusted on the basis of seniority from among the employees promoted pursuant to Section 35.

(13) Notwithstanding anything contained elsewhere in this Section, for the Gazetted Second and First class posts to be filled by open competition pursuant to Clauses (g) and (h) of Sub-section (1), the candidate must have obtained a Master's degree in the relevant subject and must have five years of experience for the Gazetted Second class post and seven years of experience for the Gazetted First class post in a gazetted officer level post in any government service or an organized institution registered under the prevailing law or an international association or institution.

Provided that, in the case of a person who has obtained a Doctoral degree, the experience period shall be reduced by two years.

(14) Other provisions relating to the filling of posts of the Federal Parliament Service and provisions relating to the filling of special posts shall be as prescribed. 18. Provision for Requisition for Filling Posts: (1) If any post of the Federal Parliament Service becomes vacant, the Secretariat shall give information thereof to the Public Service Commission within one month.

(2) While making a requisition for filling posts of the Federal Parliament Service, a requisition may be made specifying the posts that have become vacant up to that period and the posts that are expected to become

vacant due to retirement and promotion within the current fiscal year.

(3) Other provisions relating to the requisition for filling posts shall be as prescribed. 19. Appointment in Federal Parliament Service: (1) Appointment to posts of the Federal Parliament Service to be filled by open or internal competition shall be made only on the recommendation of the Public Service Commission.

(2) Appointment to a Gazetted post of the Federal Parliament Service shall be made by the Secretary General according to the decision of the Committee, and to a Non-Gazetted post by the Secretariat Secretary according to the decision of the Secretary General.

(3) Notice of the appointment of a Gazetted employee shall be published in the Nepal Gazette. 20. Disqualification for Being a Candidate: The following persons shall not be eligible to be candidates for a post in the Federal Parliament Service:-

(a) A non-Nepali citizen,

(b) A person who has not completed the age of 18 years for a Non-Gazetted post,

(c) A person who has not completed the age of 21 years for a Gazetted post,

(d) In the case of a male candidate, a person who has completed the age of 35 years, and in the case of a female candidate, a person who has completed the age of 40 years,

Provided that -

(1) A person who has not exceeded the age of 40 years may be a candidate for a prescribed post of the Federal Parliament Service with a view to being appointed as an ex-serviceman or ex-police.

(2) A person who has not exceeded the age of 45 years may be a candidate in the open competition for Gazetted Second and First classes.

(3) The age limit shall not apply in the case of permanent employees of the Federal Parliament Service and other government services of a similar nature.

Explanation: For the purpose of this Section, "permanent employees of other government services of a similar nature" means permanent employees of the Civil Service and the Nepal Health Service.

(e) A person who has been dismissed from service in a manner that renders him/her disqualified for the Federal Parliament Service and other government service in the future,

(f) A person who has been convicted by a court of a criminal offense involving moral turpitude. 21. Incumbent to Remain: An employee of the Federal Parliament Service shall remain the incumbent of his/her post in the following circumstances:-

(a) While performing work in that post,

(b) While on leave,

(c) While under suspension,

(d) While deputed by the Secretariat for other work. 22. Oath Taking: An employee appointed for the first time to a permanent post of the Federal Parliament Service shall take an oath as prescribed. 23. Probation Period:

(1) The first appointment to a permanent post of the Federal Parliament Service shall be made on a probation period of one year for male employees and six months for female employees.

(2) If the work of such an employee during the probation period is not satisfactory, the appointment may be revoked.

(3) If the appointment is not revoked pursuant to Sub-section (1), upon the expiry of the probation period, the appointment shall be deemed to be automatically confirmed. Provided that, if an employee who has already served a probation period for a permanent post in the Federal Parliament Service or another government service is appointed to a permanent post in the Federal Parliament Service on transfer, such employee shall not be placed on probation again. Explanation: For the purpose of this Section, "other government service" means the Civil Service and the Nepal Health Service. 24. Not to be Kept Without Assigning Responsibility:

(1) Except in the following circumstances, no employee shall be kept for a period exceeding two months without assigning official responsibility:-

(a) In the case of being on long leave,

(b) In the case of being suspended,

(c) In the case where it is necessary to retain the employee in the post of which he/she is the incumbent due to being deputed elsewhere.

(2) If any employee is kept without assigning official responsibility contrary to Sub-section (1), the office bearer having the duty to assign responsibility and put the employee to work shall be subject to departmental action. 25. Leadership Evaluation: Provisions relating to leadership evaluation of an employee of Gazetted First class or above shall be as prescribed. Chapter-5

Promotion

26.

Promotion: (1) Promotion to a Gazetted post of the Federal Parliament Service by evaluation of work performance shall be made on the recommendation of the Promotion Committee. (2) Notwithstanding anything contained elsewhere in this Act, promotion to the Gazetted Special class post of the Federal Parliament Service shall be made as follows:- (a) For promotion to a vacant Gazetted Special class post, the Promotion Committee shall recommend, from among the potential candidates, up to three times the number of vacant posts of candidates who have obtained the highest marks on the basis of performance evaluation, and the Committee shall promote the candidate deemed suitable from among the recommended candidates on the basis of seniority and efficiency. (b) To be a potential candidate for the Special class post pursuant to Clause (a), an employee of Gazetted First class must have also completed high-level management training as prescribed by the Government of Nepal. Provided that this provision shall not apply to promotions to be made within one year after the commencement of this Section. (c) While calculating the performance evaluation for promotion to the Special class pursuant to Clause (a), the performance evaluation of the last minimum number of years required for promotion shall be calculated. (3) For making recommendations for promotion by evaluation of work performance to Non-Gazetted posts of the Federal Parliament Service, there shall be a Promotion Committee as prescribed. 27. Promotion Committee: (1) For making recommendations for promotion to Gazetted posts of the Federal Parliament Service, there shall be a Promotion Committee as follows:- (a) Chairperson of the Public Service Commission or a Member of that Commission designated by him/her - Chairperson (b) Secretary General - Member (c) amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.A Secretary designated by the Speaker from among the Secretaries - Member (d) Secretary of the Ministry of Law, Justice and Parliamentary Affairs - Member (e) Expert in the relevant subject nominated by the Chairperson of the Public Service Commission -

Member (f) Secretariat Secretary - Member Secretary (2) The Secretariat of the Promotion Committee shall be in the Federal Parliament Secretariat. (3) The Promotion Committee shall publish the result of the promotion within four months from the last date of submission of application forms. (4) Other procedures to be adopted by the Promotion Committee while recommending promotion of an employee shall be as prescribed. 28.

Minimum Service Period and Educational Qualification Required to be a Candidate for Promotion: (1) To be a candidate for promotion, the candidate must have the prescribed educational qualification for the post one class below the class of the post to which promotion is sought and must have completed the minimum service period as follows:- (a) For Non-Gazetted post - three years, (b) For Gazetted post - five years. (2) Notwithstanding anything contained in Sub-section (1), an employee who is a woman, indigenous/janajati, madhesi, dalit, person with disability, or a resident of a backward region, may be a potential candidate for promotion even if he/she has a service period one year less than that service period. 29. Not Eligible to be a Potential Candidate for Promotion: Notwithstanding anything contained in Section 28, an employee shall not be a potential candidate for promotion during the following periods in the following circumstances:- (a) In the case of suspension, during the period of suspension, (b) In the case of promotion being stayed, during the period of stay, (c) In the case of salary increment being stayed, during the period of stay, (d) In the case of an employee who has changed group pursuant to Section 103, during a period of three years from the date of such change of group. 30. Stay and Release of Promotion Appointment: If, after an employee has been recommended for promotion but before receiving the promotion appointment, the employee is suspended or his/her promotion is stayed or salary increment is stayed, the promotion appointment shall be stayed during that period, and if the employee is acquitted from the suspension or after the expiry of the period of stay of promotion, the appointment shall be given treating as if the employee had not been suspended or the promotion had not been stayed, and only seniority shall be maintained. 31. Basis of Promotion: (1) The Promotion Committee shall make recommendations for promotion of an employee on the basis of his/her work performance. (2) While evaluating the work performance of an employee, a maximum of one hundred marks shall be given as follows:- (a) For performance evaluation - fifty marks (b) For seniority - thirty marks (c) For educational qualification - fifteen marks (d) For training - five marks 32.

Evaluation of Work Performance: (1) For evaluating the work performance of an employee, the prescribed performance evaluation form shall be used.

(2) The distribution of the total marks for the evaluation of an employee's work performance shall be as follows:-

(a) Maximum thirty marks that can be given by the supervisor

(b) Maximum ten marks that can be given by the reviewer

(c) Maximum ten marks that can be given by the review committee

(3) Performance evaluation of a Gazetted employee shall be done semi-annually and annually, and for a Non-Gazetted employee, annually.

(4) When conducting performance evaluation semi-annually pursuant to Sub-section (3), within seven days of the expiry of that period, the concerned Gazetted employee shall fill two copies of the prescribed form, mentioning the assigned works, completed works, any works not completed and the reason thereof, and submit them to the supervisor. The supervisor shall, after evaluating the form so submitted, mention in the specified place of the form the matters for which feedback is to be given and return one copy to the

concerned employee within another seven days. While conducting annual performance evaluation, the basis of each semi-annual performance evaluation form filled shall also be taken. An employee who fails to fill the semi-annual performance evaluation form within the specified time, and a supervisor who fails to check it and provide feedback, may be subject to departmental action by the authority.

(5) The performance evaluation required to be done annually shall be evaluated or caused to be evaluated within the prescribed period, two copies thereof shall be prepared, one copy shall be kept in the Secretariat of the Promotion Committee and the other copy in the Secretariat.

(6) Every employee shall fill his/her performance evaluation form and register it in the Secretariat within the prescribed time limit. If an employee fails to register it within that period and submits an application to the supervisor for extension of time with a reasonable cause thereof, and if the supervisor deems the cause mentioned in the application reasonable, an extension of up to fifteen days from the date of expiry of the prescribed time limit may be granted. If the performance evaluation form is registered after such extended period but within the same fiscal year, the review committee shall deduct one mark from the total marks obtained for evaluation from such registered performance evaluation form. Provided that, if during the period for filling the performance evaluation form, an employee has to go on deputation for foreign training, seminar or study tour, etc., the performance evaluation form shall be filled and registered in the Secretariat before such departure.

The performance evaluation form registered in this manner shall be deemed to have been registered within the stipulated time and shall be evaluated accordingly. (7) An office bearer who fails to evaluate, within the prescribed period, the performance evaluation form duly filled and registered by the employee in time shall be subject to departmental action. (8) After the annual performance evaluation conducted each year is completed by the review committee, if the concerned employee submits an application requesting information, the Secretariat of the review committee shall provide information of the total marks obtained by the employee in the performance evaluation for that year. Provided that the marks given by the review committee shall not be communicated. (9) If any employee is not satisfied with the evaluation made by the supervisor and reviewer after receiving information pursuant to Sub-section (8), he/she may file a complaint with the officer as prescribed, stating concrete grounds and reasons therefor within seven days. Upon such complaint being filed, that officer shall, after consulting with the concerned supervisor and reviewer, conduct the necessary inquiry, and if deemed necessary, the marks obtained in such evaluation form may be corrected as prescribed. (10) If the supervisor or reviewer gives more than 95 percent or less than 75 percent marks for the annual performance evaluation, clear reasons therefor shall be stated. If less than 75 percent marks are given, the concerned employee shall be informed, and if he/she provides a reaction, that shall also be kept and submitted to the review committee. If the review committee is not satisfied with the evaluation of the supervisor or the reviewer or both in the performance evaluation, it may return the evaluation stating clear reasons therefor. Upon such return, the concerned evaluator shall either re-evaluate or, if no correction is necessary to the previous evaluation, submit it stating the justifiable reason therefor. (11) For the purpose of performance evaluation, while calculating marks, the average of the performance evaluation forms of the last required number of years of service to be eligible for promotion shall be calculated.

Provided that,

(1) In the case of an employee who has gone for study or training or was suspended and the suspension was lifted, for the period of suspension, if there is a performance evaluation of the year immediately preceding such study or training or suspension, that year's evaluation shall be considered; and if there is no such

performance evaluation, the marks obtained in the performance evaluation filled after reporting for duty shall be calculated in the same proportion.

(2) The period spent on extraordinary leave shall be deducted for calculating potential candidacy, and no performance evaluation form shall be filled for such leave period. For the purpose of calculating marks for the performance evaluation of an employee who has taken extraordinary leave, the period of extraordinary leave shall be deducted, and the marks for performance evaluation for the required period for promotion from the years before or after such period shall be calculated.

(12) Other provisions relating to performance evaluation shall be as prescribed. 33. Evaluation of Seniority: While awarding marks for seniority to an employee, a maximum of thirty marks shall be awarded at the following rates for work performed in the following classes in which the employee is currently serving:-

- (a) For work performed in Non-Gazetted Third and Second class posts - at the rate of 3.75 marks per year,
 - (b) For work performed in Non-Gazetted First class post - at the rate of 3 marks per year,
 - (c) For work performed in Gazetted Third and Second class posts - at the rate of 2.5 marks per year.
- Provided that -

(1) While calculating marks for seniority, marks for months or days exceeding one year shall be given on a pro-rata basis.

(2) For the purpose of this Section, marks shall not be given for the period of absence without leave or extraordinary leave. 34. Evaluation of Educational Qualification and Training: (1) While awarding marks for educational qualification to an employee, marks shall be given as follows for the minimum educational qualification required to enter service in any post of the Service and for one additional educational qualification in a subject related to the service, group or sub-group higher than the minimum educational qualification, not exceeding fifteen marks.

In the case where only an educational qualification higher than the minimum educational qualification required for entry into service is obtained, both marks equivalent to the same level shall be given:-

Educational Qualification (Degree) Marks

First Division Second Division Third Division

- (a) For the minimum educational qualification prescribed for entry into service 12 11.75 11.50
- (b) For any one additional educational qualification in the relevant subject higher than the minimum educational qualification prescribed for entry into service 3 2.75 2.50

(2) In the case of an educational qualification for which the division is not specified, the division determined by Tribhuvan University based on the marks obtained shall be maintained.

(3) Except for the minimum educational qualification determined for the Gazetted Second and First class posts to be filled by open competition pursuant to Clauses (g) and (h) of Sub

(9) The provisions relating to medical expenses, disability pension, benefits for disablement, extraordinary family pension and gratuity, reward, educational allowance, housing allowance, dependency allowance, child care allowance and other facilities receivable by an employee shall be as prescribed. 41. Entitlement to fixed salary and allowance: (1) An employee shall receive salary and allowance each month after payment.

(2) An employee shall receive the fixed salary and allowance even if he/she is not in service for any reason

whatsoever.

(3) Except as provided in this Act or the rules made under this Act, the salary of an employee shall not be deducted.

(4) The salary receivable by an employee shall not be withheld while such employee is working or on leave.

(5) Notwithstanding anything elsewhere written in this Act, no employee shall be paid salary without the salary report being passed from the Civil Book Office every year. 42. Salary receivable upon suspension: (1) If an employee is suspended pursuant to Section 87, he/she shall receive only half of his/her salary during the period of such suspension:

Provided that if the allegation leveled is not proven and he/she is acquitted, he/she shall receive the full salary (including salary increment, if any) and festival expenses after deducting the half salary received, if any, during the suspension period, or if not received, the full salary and festival expenses. If found guilty, he/she shall not receive the remaining salary and allowance from the date of suspension.

(2) If an employee remains suspended for any reason other than those mentioned in sub-section (1), he/she shall not receive salary and allowance for such suspension period. 43. Deposit of amount in Employees' Provident Fund: Ten percent of the monthly salary of an employee shall be deducted, and the Secretariat shall add an equal amount (one hundred percent) to that amount and deposit it in the Employees' Provident Fund.

44. Performance Incentive Fund: (1) The Committee shall establish a Performance Incentive Fund to incentivize employees based on performance, work results, and achieved outcomes. (2) The operation, management, and other provisions of the Performance Incentive Fund pursuant to sub-section (1) shall be as prescribed. Chapter-7 Retirement, Gratuity and Pension 45. Compulsory Retirement: (1) An employee who has completed the age of sixty years shall automatically retire from service. (2) Notwithstanding anything written in sub-section (1), an employee holding a Special Class post shall automatically retire upon completion of his/her five-year service term. (3) For the purposes of this Section, the age of an employee shall be calculated based on whichever of the following ages results in earlier retirement: the age derived from the date or year of birth mentioned in the educational institution certificate submitted by the employee at the time of entry into service, or the age derived from the date or year of birth mentioned in the citizenship certificate, or the age derived from the date or year of birth mentioned in the personal service record (Schedule Roll) filled by the employee. 46. Power to Retire: The Committee may retire any employee from the Federal Parliament Service under the following circumstances:- (a) if it is proven that an employee has given or attempted to give any government confidential document, instrument, or information in his/her custody or obtained by him/her in any manner to any unauthorized person or body, (b) if it is proven that an employee has established undesirable contact with any foreign state, institution, or citizen contrary to the prestige of the Federal Parliament and national interest and has behaved irresponsibly contrary to the dignity of his/her position. 47. Special Provision relating to Retirement of Incapacitated Employee: If it is certified by a Medical Board constituted by the Government of Nepal that an employee is unable to perform service regularly due to physical or mental illness, the Committee may retire such employee by adding a maximum of seven years of service to his/her actual service period. 48. Voluntary Retirement: (1) An employee who has attained the condition for pension and the age limit of fifty years may take voluntary retirement within the period specified in a notice published by the Committee in the Nepal Gazette, subject to the conditions mentioned in that notice.

For an employee taking voluntary retirement in this manner, a total service period for pension shall be determined by adding a maximum of seven years of service, ensuring that the age of sixty years is not exceeded. (2) Notwithstanding anything written in sub-section (1), an employee who has attained the condition for pension and the age limit of fifty years may submit an application to the Committee if he/she wishes to take voluntary retirement. An employee desiring to take retirement in this manner may be promoted to a post one class higher pursuant to Section 39, if eligible for such promotion, and granted voluntary retirement by adding a maximum of seven years of service, ensuring that the age of sixty years is not exceeded. 49. Gratuity: (1) An employee who has served for five years or more but has not completed the period qualifying for pension shall, upon retirement, or upon separation from the Federal Parliament Service after resignation being accepted, or upon removal from the post without being declared disqualified for future Federal Parliament or other government service, receive gratuity as follows:- (a) for an employee who has served for more than five years up to ten years, half a month's last salary for each year of service, (b) for an employee who has served for more than ten years up to fifteen years, one month's last salary for each year of service, (c) for an employee who has served for more than fifteen years but less than twenty years, one and a half month's last salary for each year of service. (2) Notwithstanding anything written in sub-section (1), if it is proven that an employee has falsified citizenship, qualification, or age with the intention of remaining in the Federal Parliament Service, gratuity shall not be given to such employee, and he/she shall also be liable to punishment according to the prevailing law for such falsification. 50.

Pension: (1) An employee who has served for a period of twenty years or more shall receive a monthly pension calculated as follows:- Total service years $\times$ Amount of last salary 50 Provided that, (1) An employee dismissed from the Federal Parliament Service in a manner that renders him/her disqualified for future Federal Parliament or other government service shall not receive pension under this Section, (2) If it is proven that an employee has falsified citizenship, qualification, or age with the intention of remaining in the Federal Parliament Service, such employee shall not be given pension. (2) Notwithstanding anything written in sub-section (1), if an employee appointed to a class or post for which the maximum age for entry into service is fixed at 40 years receives compulsory retirement due to age and his/her service period is not sufficient to qualify for pension, such employee may be granted pension by adding a maximum of two years of service. (3) An employee who was in civil service before Kartik 21, 2049 and later confirmed in the Federal Parliament Service may voluntarily retire from service if he/she has completed 30 years of service. Upon such retirement, the total service period of the employee shall be determined by adding the period remaining until the completion of sixty years of age. (4) Notwithstanding anything written in sub-section (1), the minimum amount of pension shall not be less than half of the initial salary of a serving employee of the same post, and shall not exceed the initial salary of a serving employee of the same post. (5) If an employee who has completed fifteen years of service dies, a maximum of five years shall be added to his/her service period, and his/her family shall be given the option to choose and receive either pension or gratuity. (6) If a person who is already receiving a pension for previous service in any government post is later appointed to any post in the Federal Parliament Service, he/she shall be entitled to receive pension under this Section by adding the previous service period to the later service period. 51. Increase in Pension: When the salary or allowance of a serving employee of the Federal Parliament Service is increased, the amount of pension of retired employees of the same post shall also be increased by two-thirds of the amount of increase in the initial salary or allowance. Provided that this provision shall not apply to employees receiving pension under Section 52. Amended by the Pension Fund Act, 2075.52.

Special Provision relating to Contributory Pension Fund: (1) Amended by the Amending Some Nepal Acts Act, 2082. In the case of employees appointed after the commencement of this Section, the provisions of the

prevailing law relating to the contributory pension system shall apply. (2) In the case of employees to whom the contributory pension system applies pursuant to sub-section (1), the provisions of Sections 48, 49, 50, 51, 53, 54 and 55 shall not apply. 53. Family Pension and Gratuity: (1) If an employee dies while in service or within seven years of starting to receive a pension, his/her family, or his/her minor brother or unmarried sister, shall receive gratuity or pension under Section 49 or 50. Provided that in the case of pension, such pension shall not be receivable for more than seven years. If an employee dies within seven years of starting to receive a pension, the nearest heir shall not receive pension after the completion of seven years. (2) Notwithstanding anything written in sub-section (1), if the person receiving the pension is a minor, he/she shall receive such pension until attaining majority. (3) If the widower or widow of an employee is entitled to receive family pension under sub-section (1) due to the death of his/her spouse while in service or within seven years of starting to receive a pension, he/she shall receive half of the pension amount for life from the date of payment of such pension if payable, or if not so payable or if the death of his/her spouse occurs after the lapse of seven years from the start of receiving pension, from the date of death of such employee.

Provided that if such widower or widow remarries, he/she shall not receive such pension benefit.

(4) Notwithstanding anything written in sub-section (3), if the widower or widow of an employee who is receiving a pension dies or remarries, the minor children of such employee shall receive the amount of such pension as prescribed until they attain majority.

(5) When the salary of a serving employee is increased, two-thirds of the increase in the initial salary shall also be added to the amount of family pension being received by persons under sub-sections (1), (2) and (3).

(6) If an employee dies before receiving any amount receivable under this Act, such amount may be received by the person among the members of his/her family who is determined to be entitled to receive his/her pension or gratuity under this Act.

(7) When granting pension or gratuity, if the deceased employee has designated a particular person among his/her family members or his/her minor brother or unmarried sister, it shall be given to that person, and if for any reason that person is unable to receive it, or if no person has been designated, it shall be given to a person among the members of such employee's family deemed appropriate by the Committee. 54. Pension and Gratuity of Missing Employee: (1) If an employee is lost and missing, and it is unknown whether dead or alive, the amount of gratuity or pension receivable by such employee under Section 49 or 50 shall be given to his/her family.

(2) Notwithstanding anything written in sub-section (1), if a person entitled to receive pension under Section 50 goes missing before receiving pension, his/her family shall receive the full amount of pension for up to seven years, and if he/she goes missing after starting to receive pension, the full amount of pension for the remaining period until seven years, and thereafter, family pension of half the amount of pension shall be given to the spouse for life.

(3) If the missing employee is later found, if the gratuity under Section 49 has not already been paid, such gratuity or the pension amount receivable under Section 50 shall be given to him/her from the date he/she comes to claim it. Provided that the gratuity, pension, or family pension amount already paid under sub-section (1) or (2) shall not be claimed by the person later found. 55.

Special Provision relating to Family Pension: (1) Notwithstanding anything else written in this Act, if an employee dies due to conflict while performing tasks assigned by the Government of Nepal, and if his/her service term is less than twenty years, the remaining period shall be added, and his/her spouse shall be

given a pension under this Act for life. (2) A person receiving pension under sub-section (1) shall not be entitled to family pension or gratuity under Section 53. (3) If a person receiving pension under this Section remarries, he/she shall not receive such pension. (4) When the salary of a serving employee is increased, two-thirds of the increase in the initial salary shall also be added to the family pension amount being received by a person under this Section. (5) If the person receiving pension under this Section dies or remarries, if the deceased employee has minor sons or daughters, such sons or daughters shall receive the amount of such pension as prescribed until they attain majority. 56. Special Financial Facility: If an employee dies while in service, a lump sum of one hundred fifty thousand rupees shall be provided to his/her family. 57. Reference to Salary: (1) The word "salary" used in various places in this Act shall mean the current salary amount (including salary increment) of the concerned employee of the Federal Parliament Service. (2) For the purposes of Sections 49 and 50, "last salary" shall mean the salary being drawn by the concerned employee at the time of attaining retirement, and if any employee is on extraordinary leave or suspension at the time of attaining such retirement, full salary shall also be calculated for such period. 58. Provision relating to Insurance: Provisions relating to insurance facilities for employees shall be as prescribed. 59. Leave receivable by employee: (1) An employee shall receive the following leaves as prescribed:- (a) Casual and festival leave, (b) Home leave, (c) Sick leave, (d) Maternity leave, (e) Maternity care leave, (f) Bereavement leave, (g) Compensatory leave, (h) Study leave, (i) Extraordinary leave. (2) Notwithstanding anything written in sub-section (1), if the husband or wife of an employee is assigned to a Nepalese embassy or any mission abroad, such employee shall receive unpaid leave as prescribed. The period of such leave shall not be counted in his/her service period. (3) Other provisions and procedures relating to leave shall be as prescribed. 60. Provision relating to Study, Training or Study Tour: Provisions relating to study, training, or study tour of employees shall be as prescribed.

Chapter-8 Conduct 61. Punctuality and Regularity: An employee shall regularly attend the office at the time determined by the Secretariat and shall not, as far as possible, be absent from the office without prior approval of leave. 62. Discipline and Obedience of Orders: (1) An employee shall remain disciplined and perform his/her duties honestly and diligently. (2) An employee shall promptly carry out orders given by a superior officer in matters related to the work of the Federal Parliament. (3) An employee shall show due respect to employees senior to him/her and behave appropriately towards employees junior to him/her. (4) An employee who is absent from his/her office without taking leave may be marked absent and have his/her salary deducted. The period of such absence shall not be counted in service period. 63. Not to Exert Political or Undesirable Influence: No employee shall exert or attempt to exert any political or undesirable influence over another employee with the intention of serving his/her own interest in matters related to his/her service. 64. Not to Participate in Politics: An employee shall not participate in politics. 65. Not to Criticize: (1) No employee shall, under his/her real or assumed name or anonymously, publish any article, give any news to the press, broadcast speeches by radio or television, deliver any public speech, or publish any statement in a manner contrary to the policy of the Federal Parliament or the Government of Nepal, or in a manner likely to disrupt the mutual relationship between the Government of Nepal or the Federal Parliament and the people, or relations with any foreign state. (2) Notwithstanding anything written in sub-section (1), there shall be no bar to publishing or broadcasting articles in a manner not contrary to the prevailing law and the policy of the Federal Parliament or the Government of Nepal. 66. Prohibition on Publishing News relating to the Work of Federal Parliament: No employee shall, without authorization, directly or indirectly give or disclose any confidential or legally prohibited matter that has come to his/her knowledge while performing duties, any document or news written or collected by him/her, to an unauthorized employee or non-government person or press or other body. This prohibition shall also apply to persons who are no longer in service for any reason

whatsoever. 67.

Prohibition on Receiving Donations, Gifts, Subscriptions, etc., and Taking Loans: (1) No employee shall, without prior approval of the Secretariat, accept any kind of donation, charity, gift, or present from anyone, either himself/herself or through any member of his/her family, or solicit subscriptions, or take loans from persons having business with the Federal Parliament in government work, in a manner likely to affect the work of the Federal Parliament or the Government of Nepal in any way. (2) If an employee receives any gift from any foreign government or any representative of a foreign government, he/she shall inform the Committee thereof and act as directed. 68. Not to Establish and Operate Companies or Engage in Trade or Business: (1) An employee shall not, without prior approval of the Secretariat, do the following:- (a) Participate in the establishment, registration, or operation of any bank, consultancy service, or company, (b) Engage in any trade or business required to be registered under the prevailing law, (c) Accept any kind of employment elsewhere. (2) Notwithstanding anything written in sub-section (1), an employee may engage in literary, scientific, or artistic work in a manner not contrary to the policy of the Federal Parliament or the Government of Nepal. 69. Not to Participate in Elections: An employee shall not participate in elections for any political post, or solicit votes for anyone, or exert any kind of influence. Provided that there shall be no bar to exercising his/her right to vote under the prevailing law without disclosing whom he/she voted for or intends to vote for. 70. Prohibition on Conducting Demonstrations and Strikes: An employee shall not conduct demonstrations, participate in strikes, or incite others to do so with the intention of harming the sovereignty and integrity of Nepal, or in a manner that affects the peace, security, foreign relations and public dignity of the country, the prestige of the Federal Parliament, or constitutes contempt of court, or creates enmity among persons of different caste, ethnicity, religion, class, region and community, or spreads political or communal ill-will, or encourages any crime. 71. Prohibition on Strike, Obstruction, and Encircling: An employee shall not strike or go on pen-down, or exert pressure through physical or mental harassment, or incite others to do so, in a manner that obstructs or opposes any officer in the performance of duties determined by law. 72. Prohibition on Representation: An employee shall not represent any other person or group, except by filing a petition himself/herself or through an agent before the concerned body or authority on matters in which he/she feels aggrieved.

Provided that this Section shall not be deemed to obstruct representation made on behalf of the employees' union formed under Section 73 and any act required to be performed based on the official duty of an employee. 73. Employees' Union: (1) Employees of the Secretariat, excluding the Marshall, in the third class or below of the gazetted level may form one Employees' Union for their professional rights and interests. (2) If the Employees' Union existing in the Federal Parliament Secretariat at the time of the commencement of this Act submits an application along with the union's constitution and the list of office bearers of the working committee within thirty days of the commencement of this Act, the Secretariat shall grant recognition to it as the Employees' Union. (3) The functions, duties and powers of the Employees' Union formed under this Section shall be as follows:- (a) To provide constructive suggestions and assistance to the Secretariat to make the Federal Parliament Service effective and dynamic by protecting and promoting the rights and interests of employees, (b) To provide suggestions to the Secretariat on matters of law relating to the Federal Parliament Service, (c) To present demands relating to the professional rights and interests of employees before the Secretariat and establish mutual dialogue and consensus. (4) Other provisions relating to the election, formation, and operation of the Employees' Union shall be as prescribed. 74. Property Details: Every employee shall submit details of his/her property to the Secretariat within one month of assuming office. 75. Not to Torture: (1) An employee shall not torture anyone. (2) An employee shall not commit or cause to commit acts related to sexual harassment and domestic violence. 76. Other Conduct: (1) An employee shall

behave courteously towards everyone while working in his/her office. (2) An employee shall with dignity bear the responsibilities arising according to his/her office and post, and perform work impartially, transparently, and expeditiously. (3) An employee shall not use or utilize any government property for domestic work. (4) An employee shall not engage any employee appointed to receive salary or allowance from government revenue in his/her domestic work. 77.

Conduct to be Observed According to Service and Post: (1) Every employee shall also observe conduct appropriate to his/her service or post. (2) If an employee fails to observe punctuality, fails to obey an order given by a senior employee in matters related to government work, or is negligent or slow in office work, the concerned supervisor may, after recording reasons, give a warning to such employee, and a record thereof shall be kept in the personal file of the concerned employee. Chapter-9 Security of Service 78. Security of Employee's Service: No employee shall be removed or dismissed from the Federal Parliament Service without being given a reasonable opportunity to present a defense, except under the following circumstances:- (a) Convicted by a court on a criminal charge involving moral turpitude, (b) Holding a temporary post, (c) Having sufficient grounds that the employee is absconding or cannot be contacted, (d) Convicted by a court on a charge of corruption. 79. Defense of Employee: (1) No case shall be instituted against an employee in relation to any act done by him/her in the belief that it was performed in the course of duty of his/her position, without complying with the procedure under sub-section (2). (2) For instituting a case against an employee under sub-section (1), permission of the Secretary-General must be obtained in the case of a criminal case, and in the case of a civil case, the following must have occurred:- (a) Two months have elapsed after a written notice specifying the cause for instituting the case and the name and address of the plaintiff and his/her representative, if any, has been submitted to the Secretary-General or the concerned employee of the Federal Parliament Service, or sent by registered post, and a copy thereof has been submitted to the Secretariat, (b) The case has been filed within eight months of the cause for instituting the case. (3) No case shall be instituted against a former employee after the termination of service in relation to any act done in the course of the performance of duty of his/her position while in service, without permission under sub-sections (2) and (3). (4) If permission is given to institute a case under sub-section (3), the Secretariat shall provide for his/her defense. 80. Protection of Service Conditions: The terms of service relating to salary, gratuity, pension, and other facilities that were in force at the time of appointment of any employee shall not be changed to his/her detriment without his/her consent.

If any subsequent amendment adversely affects in any way the said service conditions of any employee who was in service before such amendment, such amended provision shall not apply to him/her without his/her written consent agreeing to be bound by such amended provision. Chapter-10 Punishment and Appeal 81. Punishment: An employee may be given the following ordinary or special punishment for reasonable and sufficient cause:- (a) Ordinary punishment: (1) Reprimand, (2) Withholding a maximum of two salary increments or promotion for up to two years, (3) Withholding two to five salary increments or promotion for two to five years. (b) Special punishment: (1) Removal from service without being declared disqualified for future Federal Parliament or other government service, (2) Dismissal from service being declared disqualified for future Federal Parliament or other government service. 82. Reprimand or Withholding up to Two Salary Increments or Promotion up to Two Years: An employee may be given the punishment of reprimand, or withholding a maximum of two salary increments, or withholding promotion for up to two years under any of the following circumstances:- (a) If the work performed by him/her is not satisfactory, (b) If he/she fails to hand over charge as per the prevailing law, (c) If he/she has received written warning twice within one year pursuant to sub-section (2) of Section 77, (d) If he/she fails to responsibly fulfill the official duties and responsibilities specified by this Act or the prevailing law, (e) If he/she fails to follow instructions given by a

superior officer regarding repeated disregard for the concerns and complaints of service recipients, (f) If an officer having the duty to implement or cause to implement job descriptions fails to do so. 83. Withholding Promotion for Two to Five Years or Withholding Two to Five Salary Increments: An employee may be given the punishment of withholding promotion for two to five years or withholding two to five salary increments under any of the following circumstances:- (a) If he/she commits an act of indiscipline, (b) If he/she violates conduct-related matters mentioned in this Act or the rules made under this Act, (c) If he/she fails to settle advances as per the prevailing law, (d) If he/she remains absent from office frequently without prior approval. 84.

Removal or Dismissal from Service: (1) An employee may be removed from service without being declared disqualified for future Federal Parliament or other government service under any of the following circumstances:- (a) If the employee is unable to perform the work or responsibilities of his/her post due to disqualification, (b) If he/she repeatedly violates conduct-related matters, (c) If he/she frequently consumes narcotics or intoxicants during office hours, (d) If he/she frequently commits acts of indiscipline, (e) If he/she participates in politics, (f) If he/she repeatedly neglects the responsibilities of his/her post, (g) If he/she remains absent from his/her office for a continuous period of sixty days without approved leave. (2) An employee may be dismissed from service, being declared disqualified for future Federal Parliament or other government service, under any of the following circumstances:- (a) If convicted by a court on a criminal charge involving moral turpitude, (b) If he/she commits corruption. 85. Special Provision relating to Departmental Action and Punishment: (1) Notwithstanding anything else written in this Act, an employee who is absent from his/her office without taking leave, contrary to Section 61, may be marked absent and have his/her salary deducted. The period of such absence shall not be counted in service period. (2) Notwithstanding anything else written in this Act, an employee who is absent for a continuous period of more than sixty days without approved leave shall not be marked present after deducting the absence. If an officer marks such employee present, such officer shall be subject to departmental action under Section 82, and the salary and allowance drawn by the employee so marked present shall be recovered from the officer so marking present as a government due. 86. Authority to Impose Departmental Punishment: (1) The authority to order special punishment under clause (b) of Section 81 for employees shall be as follows:- (a) For employees working in the first class or above of the gazetted level, the Committee, (b) For employees of the second and third classes of the gazetted level, the Secretary-General, (c) For non-gazetted employees, the Secretariat Secretary. (2) The authority to order punishment under clause (a) of Section 81 shall be as prescribed. 87. Power to Suspend: (1) If an investigation has to be conducted into any allegation against an employee mentioned in Section 84, the Committee may suspend such employee until the investigation is completed.

Provided that suspension shall not ordinarily be made unless the following circumstances exist:- (a) If there is a possibility that the employee, if allowed to perform duties of the post without suspension, may collect false evidence or destroy evidence against him/her, or (b) If there is a possibility that allowing the employee to perform duties of the post without suspension may cause loss or damage to any work of the Federal Parliament Service. (2) When suspending an employee under sub-section (1), the suspension shall ordinarily not exceed two months. Action against the employee shall be concluded within that period. If due to any extraordinary circumstance, the action cannot be concluded within that period and the suspension period has to be extended, the suspension period may be extended by up to one month with prior approval of the Public Service Commission. (3) An employee who is arrested and detained on a criminal charge involving moral turpitude shall be deemed to be automatically suspended for the period of such detention. (4) The suspension of an employee shall end if he/she is reinstated to his/her post, or upon the expiry of the period

under sub-section (2), or upon removal or dismissal from service. 88. Opportunity to Submit Defense: (1) Before ordering punishment to an employee, the Committee shall give such employee a reasonable period to submit his/her defense, mentioning the reasons for initiating action. While giving such opportunity, the charges against him/her shall be clearly specified, and the facts and reasons on which each charge is based shall also be stated. In such case, the concerned employee shall also submit his/her defense within the period, and the Committee shall seriously consider the defense so submitted. (2) Before ordering departmental punishment, the Committee may cause an investigation to be conducted by itself or by another officer if deemed necessary. The officer conducting the investigation shall follow the prescribed procedure. 89. Punishment to be Proposed before Ordering Special Punishment: Before ordering special punishment, if the employee fails to submit a defense within the period given for submitting a defense under Section 88, or if the defense submitted is not satisfactory, the Committee shall give such employee a reasonable period to explain why the proposed punishment should not be given. 90.

Consultation with Public Service Commission: If, in the course of departmental proceeding, the defense submitted by the employee under Section 88 or the explanation submitted under Section 89 is not satisfactory and it appears necessary to punish such employee, the authority competent to order departmental punishment shall propose the punishment to be given to such employee and consult the Public Service Commission. 91. Appeal: (1) An employee dissatisfied with the order of departmental punishment given by the authority competent to order such punishment under this Act may file an appeal before the Administrative Court formed under the prevailing law, amended by the Administrative Court Act, 2076. the Administrative Court formed under sub-section (1) of Section 69 of the Civil Service Act, 2049. (2) If, after a final decision on an appeal relating to a punishment received by an employee, the employee's service is reinstated as a result thereof, but the employee does not appear within three months from the date of receiving notice of such decision, his/her employment shall not be retained. 92. Entitlement to Full Salary and Allowance after Reinstatement in Federal Parliament Service: If an order of removal or dismissal of an employee from the Federal Parliament Service is annulled by a court and he/she is reinstated in the Federal Parliament Service, such employee shall receive full salary, allowance, festival expenses, and salary increment, if any, from the date of removal or dismissal to the date of reinstatement. Chapter-11 Provisions relating to Appointment and Service Conditions of Marshall 93. Marshall: (1) There shall be a required number of Marshalls in the Secretariat to secure the Federal Parliament premises and to assist in matters relating to maintaining order for the smooth conduct of meetings of the Federal Parliament and its committees. (2) The posts, class, and level of Marshalls under sub-section (1) shall be as prescribed. 94. Appointment and Service Conditions of Marshall: Provisions relating to the appointment and service conditions of Marshalls shall be as prescribed. 95. Salary, Allowance and Other Facilities: (1) A Marshall shall receive salary from the date of assuming office equivalent to the initial scale of the initial level of the equivalent post in the Nepalese Army. (2) Except in cases where salary increment is withheld, a person appointed to the post of Marshall shall receive a salary increment equivalent to one day's salary of the initial scale of the post he/she holds upon completion of one year of appointment.

Provided that the total annual salary increment amount receivable by an employee under this sub-section shall not exceed the amount prescribed by the Government of Nepal for the relevant class of the Nepalese Army.

(3) A Marshall shall receive an amount equivalent to one month's salary being drawn annually as festival expenses.

(4) A Marshall shall receive an amount equivalent to one month's salary being drawn annually as an incentive

after the budget is passed by the Federal Parliament.

(5) Allowances, leave, and other facilities receivable by a Marshall shall be as prescribed. 96. Conduct and Punishment: Provisions relating to conduct to be observed by Marshalls and punishments applicable to them shall be as prescribed. Chapter-12

Miscellaneous

97. Handing Over Charge: Every employee and Marshall shall hand over the cash, kind, or documents in his/her charge to the concerned employee within the prescribed period, and the person receiving shall also take over the charge within the same period. 98. Delegation of Powers: (1) The Committee may delegate some of the powers conferred to it under this Act to the Secretary-General, Secretary, or any other officer to exercise.

(2) The Secretary-General may delegate some of the powers conferred to him/her to the Secretary, Secretariat Secretary, or any other officer to exercise. 99. Contact with Government of Nepal: The Secretariat shall maintain contact with the Government of Nepal through the Ministry of Law, Justice and Parliamentary Affairs. 100. Provision relating to Contract: (1) The Committee may engage any person on a contract basis for expert and essential services.

(2) Other provisions relating to engaging persons on a contract basis shall be as prescribed. 101. Power to Seek and Provide Assistance: (1) For the work of the Federal Parliament and its committees, the Secretariat may seek necessary manpower and other assistance from any ministry, department, office, constitutional body of the Government of Nepal, Nepalese embassies abroad, as well as unions, organizations and amended by the Amending Some Nepal Acts Act, 2062.local levels owned by the Government of Nepal.

(2) It shall be the duty of the concerned body or officer to provide the assistance requested under sub-section (1).

(3) With the consent of the Secretariat, the Government of Nepal may depute employees of the Secretariat and obtain necessary services. 102. Posts of Other Service Groups to Exist: (1) There shall be posts in the Secretariat under the Nepal Judicial Service (Law Group), Nepal Administrative Service (Accounts Group), and Nepal Health Service under the Civil Service.

(2) An employee holding a post under sub-section (1) shall, while working in the Secretariat, receive all facilities similar to those enjoyed by employees of the Federal Parliament Service, except insurance. 103.

Change of Group or Sub-group: If an employee working in a post of one group or sub-group of the Federal Parliament Service submits an application wishing to change to a matching post of the same class in another group or sub-group, and if he/she possesses the minimum educational qualification required for the post desired to be changed to and has completed the minimum service period required for promotion to a higher post, the Committee may change his/her group or sub-group in consultation with the Public Service Commission. 104. Maintenance of Record of Employee's Punishment: (1) The Secretariat shall maintain a record of punishments of employees. (2) The record maintained under sub-section (1) shall be taken as a basis for the following periods when entrusting departmental head responsibility, evaluating performance, awarding Federal Parliament Service rewards or decorations, nominating for study or training, upgrading, and providing any other kind of opportunity:- (a) In case of reprimand, for a period of one year from the date of receiving such punishment, (b) In case of suspension, for the entire period of suspension, (c) In case of promotion being withheld, for the period of withholding, (d) In case of salary increment being withheld, for the period of withholding. 105. Provision for Redressal of Grievances and Complaints of Employees: (1) Except

in cases where an employee is entitled to file a complaint or appeal elsewhere under this Act or the prevailing law, if an employee feels aggrieved regarding any services, conditions, facilities provided under this Act or the rules made under this Act, or any matter concerning the employee, and if no action is taken even after informing the departmental head, he/she may present his/her grievances and complaints before the Committee as prescribed. (2